of the couple had always been a source of gossip and curiosity among neighbours and relatives. With a child in the mix now, the Mukherjees have just not been able to muster the enthusiasm for the grand celebration Pablo hopes to hold for his daughter's birthday, in the midst of friends and family.

THE ROAD TO RECOGNITION

The latest ruling came in response to an appeal filed against a 2009 Kerala High Court verdict in *Kattukandi Edathil Krishnan & Another vs Kattukandi Edathil Valsan & Others*. The case was related to a property dispute in Calicut, where the plaintiff, whose parents had cohabited for several years but not married, was demanding his share in the partition of property. The trial court ruled in his favour, the HC overturned it, and the apex court finally relied on the Indian Evidence Act 1872 to declare, 'The law has a presumption in favour of marriage and not concubinage; therefore, live-in relationships have an advantage of a long cohabitation which gives a presumption in their favour, thus enhancing the claim of legitimacy of the children born out of such relationship." In its 2010 verdict in the *S. Khushboo* vs *Kanniammal* case, the Supreme Court had held that two adults cohabiting for a considerable period have to be acknowledged as being in a domestic relationship, of the kind that exists between spouses (see *The Quest for Legitimacy*). It also brought live-in relationships under the purview of the Right to Life under Article 21 of the Constitution. In 2014, the courts reaffirmed that children born out of such relationships were legitimate. The latest verdict upholds their right to property under the various inheritance laws.

With law paving a progressive way, what does this portend for marriage as a social construct in India? Will Indian society readily accept what the law has of late decreed?

THE QUEST FOR LEGITIMACY

Some landmark judgments that have impacted the way the law looks at live-in relationships

2006: LATA SINGH VS STATE OF UTTAR PRADESH

The Supreme Court rules that an adult woman is free to marry or live with anyone she likes

2008: TULSA & OTHERS VS DURGHATIYA & OTHERS

Upholding the inheritance rights of children born to a couple whose marriage was challenged by rival claimants, a Supreme Court bench ruled that when a man and a woman live together continuously for a long spell, they will be presumed to be married. 'The presumption is rebuttable but a heavy burden lies on the person who seeks to deprive the relationship of legal origin to prove that no marriage took place,' the bench observed.

2010: S. KHUSHBOO VS KANNIAMMAL

The Supreme Court stated that a live-in relationship comes within the ambit of the Right to Life under Article 21 of the Constitution and that it is not illegal for two consenting adults to live together. The judgment categorised live-in relationships as "domestic relationships", bringing them within the purview of the Protection of Women from Domestic Violence Act, 2005.

2013: INDRA SARMA VS V.K.V. SARMA

Categorising live-in relationships into two types–domestic cohabitation of two unmarried individuals and domestic cohabitation where one or both partners are married to others–the Supreme Court recognised the legitimacy of the first type only

2014: UDAY GUPTA VS AYSHA & ANOTHER

A Supreme Court bench comprising Justices B.S. Chauhan and J. Chelameswar observed that if a man and a woman "lived like husband and wife" for a long period, their children could not be called illegitimate

2022: K. EDATHIL KRISHNAN & ANOTHER VS K. EDATHIL VALSAN & OTHERS

Setting aside a 2009 verdict of the Kerala High Court, a Supreme Court bench of Justices S. Abdul Nazeer and Vikram Nath said, "It is well settled that if a man and a woman live together for long years as husband and wife, there would be a presumption in favour of wedlock." The bench ruled that the child of such a couple cannot be denied the right to inheritance.